

Hollowell Patent Group PLLC

www.hollowellpatent.com

March 30, 2024

Cynthia Hunter, Chief Operating Officer

Jackson Inc

Re: Trademark clearance engagement

Dear Ms. Hunter:

This letter confirms the terms on which Hollowell Patent Group PLLC will act for Jackson Inc in connection with the trademark clearance work we discussed. It is written to be read later, by people who were not in the room when we discussed it, and so it states the scope of the work, the conditions on that work, and the terms of payment before any of it begins. If a term below does not match your understanding of our conversation, tell me before you sign rather than after.

Scope and Approach

You have asked us to assess the availability of a set of proposed marks for use and for registration in connection with products Jackson Inc intends to bring to market. Our work will consist of knockout screening of the candidate marks, full clearance searching of the candidates that survive that screening, and written opinions on the marks you elect to pursue. Each opinion will address likelihood of confusion and registrability on the record available to us at the time it issues. It will not address rights outside the United States, common-law uses that the searches described below cannot reach, or the separate question of whether a particular third party will in fact object.

A clearance opinion is a judgment about risk on an incomplete record, and we will write it that way. Where the record supports a conclusion, we will state the conclusion. Where the record does not, we will say what we found, what we did not look for, and what remains open. We do not issue unqualified assurances that a mark is free to use, and I would encourage you to be skeptical of any firm that does.

- Knockout screening of the candidate marks against federal registrations and pending applications, with a short written report identifying the candidates that do not survive and the references that stopped them.
- Full clearance searching of the surviving candidates, covering federal, state, and common-law sources, including business name and domain usage.

- Written clearance opinions on the marks you elect to pursue, each addressing likelihood of confusion, registrability, and the boundaries of the search on which it rests.
- A closing conference to walk through the opinions and the filing options they leave open to you.

Filing and prosecution of any application is outside this engagement. If you decide to file, we will confirm that work in a separate letter with its own scope, its own fee, and its own dates. I raise it here because a deadline that attaches under an engagement nobody has written down is the kind of problem this firm exists to prevent.

The Team

I will supervise the matter and remain your point of contact. Ashley Williams, a patent agent in our prosecution group, will run the searching and draft the opinions. She has a standing objection to the word "clearly" appearing anywhere in an opinion letter, which I regard as a qualification rather than an eccentricity. Kelly Snyder, an associate, will handle the record review and will hold the docket for this matter. Every date on it is calendared the day it is known to us.

The matter will be staffed at the level each task requires and no higher. You will not be billed for two people reading the same document. If the composition of the team changes, I will tell you before it changes rather than in an invoice.

Conflicts

We have run this matter through our conflicts system and have identified no conflict that prevents us from acting for you. Our practice includes clients in medical devices, university licensing, and venture-backed hardware, and it is possible that a future matter will place this firm adverse to a company in which you have an interest. If that arises, I will raise it with you at once and we will resolve it under the applicable rules of professional conduct. This engagement is with Jackson Inc alone. It does not extend to affiliates, officers, or investors, and no other party may rely on the opinions we deliver under it.

Fee and Commencement

Our fee for the work described above is \$48,000, fixed for the scope stated in this letter. The engagement begins on April 9, 2024 and we expect the work to run approximately four months from that point, subject to the number of candidates that survive screening and to the responsiveness of sources we do not control. The fee covers the screening, the searching, the opinions, and the closing conference. It does not cover search vendor charges, official fees, or work outside the stated scope. Vendor charges are billed at cost. Work outside the scope is not performed until it is confirmed in writing.

Fees and Payment

Invoices issue monthly and are payable within thirty days of receipt. Amounts unpaid after sixty days accrue interest at the maximum rate the applicable law permits. If an invoice remains unpaid after ninety days, we may suspend work on the matter on written notice to you, and we may withdraw as described below. A suspension does not stop a deadline from running, and any notice of suspension will identify the dates then pending so that no one is left to discover them later.

Term and Termination

The engagement begins on the date stated above and ends when we have delivered the final opinion and held the closing conference, unless we extend it in writing. You may terminate at any time, with or without cause, on written notice to me. We may withdraw on written notice where the applicable rules of professional conduct permit, including for nonpayment, for a conflict arising during the representation, or where continuing would require us to act in a manner we consider improper. On termination you remain responsible for fees earned and costs incurred to that date, and we will return the file promptly on request. If any date is pending when the engagement ends, we will identify it in writing so that responsibility for it is unambiguous.

Confidentiality

Information you provide in the course of this representation is protected by the attorney-client privilege and by our duty of confidentiality, and we will treat the searches and opinions produced under this engagement as privileged work product. That protection is yours, which means it is also yours to waive, and it is easier to waive than most clients expect. Circulating an opinion beyond the people who need to act on it, or attaching one to a document produced in a dispute, can put it at issue. We will mark the opinions accordingly. Please limit their distribution, and ask us before an opinion goes to a party outside the company.

Limitation of Liability

Our work rests on the record available to us and on the information you give us. We do not warrant that a cleared mark will register, that no third party will assert a claim against it, or that any search has surfaced every conflicting use in existence. Our liability arising out of this engagement is limited to the fee paid under it, except to the extent the applicable rules of professional conduct do not permit that limitation, in which case it is limited to the fullest extent those rules allow. Nothing in this paragraph limits an obligation we may not lawfully limit.

Governing Law

This engagement is governed by the law of the jurisdiction in which the firm maintains its principal office, without regard to its conflict-of-laws rules, and by the rules of professional conduct

applicable to our practice there. Any dispute arising out of this engagement will be resolved in the courts of that jurisdiction.

If the foregoing is acceptable, please sign below and return a copy to my attention. We will not open the file or order a search before the signed letter is back and the engagement date has arrived. If any term here raises a question, call me. I would rather answer it now than explain it to someone else later.

Very truly yours,

Mary Bradley

Managing Partner

Date: March 30, 2024

Cynthia Hunter

Chief Operating Officer, Jackson Inc

Date: March 30, 2024